

25VECV04095 25VECV04095

County: los-angeles

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Department: I

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ALLYSON SPENCER, et al. vs AVIATORS INC. DBA AVIATORS FLIGHT ACADEMY, et al.

August 13, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel

Responses

I.

Background

On July

22, 2025, Plaintiffs Allyson Spencer (“Allyson”) and Albert Spencer (“Albert”)(collectively “Plaintiffs”) filed a complaint against Defendants Aviators Inc. (“Aviators”), Aviators Flight Academy (“AFA”), the estate of Ronak Prakash Kandachia (“Kandachia”), Crescent Aviation, LLC (“Crescent Aviation”), The Flight Academy LLC (“Flight Academy”), and Does 1 to 50 alleging one cause of action for wrongful death.

On July 8, 2026, Allyson filed the instant motion to compel Aviators’s responses to her Requests for Production of Documents, Set One.

On July 31, 2026, Aviators filed its opposition.

On August 5, 2026, Allyson filed her reply.

II. Motion to Compel Responses

Request for Production of Documents

Any party may obtain discovery by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action. (CCP § 2031.010(a).) If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response, the demanding party may move for an order compelling response to the demand. (CCP § 2031.300(b).) Failure to timely respond waives any objection to the demand. (CCP § 2031.300(a).)

Discussion

Allyson served her discovery requests on Aviators on March 11, 2026. (Zarich Decl. at ¶ 3; Exh. A [requests].) As of the date of this motion, Aviators had yet to serve responses. (Id. at ¶ 11.)

In opposition, Aviators argues that “[b]efore the hearing date on this Motion, Aviators will have served verified responses together with responsive documents . . . Because Defendant will have complied with its discovery obligations, the Motion should be denied as moot.” (Opposition at 2:2-10.)

Aviators does not explain its failure to serve timely responses. Accordingly, Allyson’s motion is granted.

Allyson’s counsel requests sanctions in the amount of \$735.00, representing 1.5 hours of work at an hourly rate of \$450.00 and a \$60.00 filing fee. (Zarich Decl. at ¶¶ 12-15.) The Court finds the hourly rate and number of hours reasonable.

III. Conclusion

Based on the foregoing, Plaintiff Allyson Spencer's motion to compel Defendant Aviators Inc. is GRANTED.

Aviators Inc. is ordered to serve Plaintiff Allyson Spencer with substantive, verified, and code-compliant responses, without objections, to Requests for Production of Documents, Set One, within 20 days of this order. Additionally, Aviators and its counsel, jointly and severally, are to pay Plaintiff's counsel sanctions in the amount of \$750.00 within 20 days of this order.

Moving party to give notice.